

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SHAWN FULCHER,

Plaintiff,

-against-

POLICE OFFICER EDUARDO RODRIGUEZ, Tax
957091, SERGEANT DANIEL DALLEMAND, Tax
944480, SERGEANT KEVIN DEVINE, Tax 92519,
SERGEANT FORREST HIRSCH, Tax 941905, POLICE
OFFICER STEVE CRUZ, Tax 950252, and POLICE
OFFICERS JOHN DOES # 1-10 (names and number of
whom are unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
June 15, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER EDUARDO RODRIGUEZ, Tax 957091, 69th Pct, 9720 Foster Ave,
Brooklyn, NY 11236.
SGT DANIEL DALLEMAND, Tax 944480, 69th Pct, 9720 Foster Ave, Brooklyn, NY
11236
SGT KEVIN DEVINE, Tax 925191, Intel Crime Section,
SGT FORREST HIRSCH, Tax 941905, 81st Pct, 30 Ralph Ave, Brooklyn, NY 11221
POLICE OFFICER STEVE CRUZ, Tax 950252, 69th Pct, 9720 Foster Ave, Brooklyn,
NY 11236

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

SHAWN FULCHER,

Plaintiff,

-against-

INDEX NO.:

VERIFIED COMPLAINT

POLICE OFFICER EDUARDO RODRIGUEZ, Tax
957091, SERGEANT DANIEL DALLEMAND, Tax
944480, SERGEANT KEVIN DEVINE, Tax 92519,
SERGEANT FORREST HIRSCH, Tax 941905, POLICE
OFFICER STEVE CRUZ, Tax 950252, and POLICE
OFFICERS JOHN DOES # 1-10 (names and number of
whom are unknown at present),

JURY TRIAL DEMANDED

Defendants.

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Plaintiff SHAWN FULCHER, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 18, 2017 at 6:15 am plaintiff was lawfully sleeping inside of his apartment located at 482 Monroe Street, Brooklyn, New York, 2nd Floor when defendants unlawfully entered plaintiff's apartment as well as each of the other 6 apartment units located in the in the building without a validly obtained search warrant search his apartment or any legal justification to enter his apartment. The defendants unlawfully searched plaintiff's apartment, unlawfully searched plaintiff, unlawfully handcuffed and falsely arrested/imprisoned plaintiff without probable cause or legal justification, and then transported plaintiff to the 81st Precinct whereat he was unlawfully strip searched and detained in a holding cell for many hours before he was transported to Kings County Central Booking where he was detained until February 19, 2017 at approximately 10:00 pm, after he had been unlawfully detained by defendants for approximately 40 hours. On February 19, 2017 at approximately 10:00 pm plaintiff was arraigned in Kings County Criminal Court, and was charged with crimes that the officers lacked probable cause to accuse him of committing. Defendants initiated the criminal prosecution against plaintiff and provided the

District Attorney's Office with false, fabricated, misleading and/or incomplete evidence in order to justify arresting and prosecuting plaintiff. Defendants maliciously prosecuted plaintiff and denied him the right to due process/ right to a fair trial. Plaintiff was required to make 7 court appearances in Kings County Criminal Court before all criminal charges were dismissed and sealed in their entirety on November 20, 2017. Additionally, defendants seized \$193.10 from plaintiff, without any legal basis to seize the funds, and defendants did not return the seized funds to plaintiff. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully entered and searched his apartment, searched plaintiff, confined plaintiff, falsely arrested/ imprisoned plaintiff, unlawfully strip searched plaintiff, denied plaintiff the right to due process/ right to a fair trial, maliciously prosecuted plaintiff and unlawfully seized plaintiff's property/ money in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the common law of the State of New York.

PARTIES

1. Plaintiff SHAWN FULCHER was at all times relevant herein a resident of the State of New York.

2. Defendant POLICE OFFICER EDUARDO RODRIGUEZ, Tax 957091, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

3. Defendant POLICE OFFICER EDUARDO RODRIGUEZ, Tax 957091, is and was at all times relevant herein, assigned to the 69th Precinct.

4. Defendant POLICE OFFICER EDUARDO RODRIGUEZ, Tax 957091, is being sued in his individual and official capacity.

5. Defendant SERGEANT DANIEL DALLEMAND, Tax 944480, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

6. Defendant SERGEANT DANIEL DALLEMAND, Tax 944480, is and was at all times relevant herein, assigned to the 69th Precinct.

7. Defendant SERGEANT DANIEL DALLEMAND, Tax 944480, is being sued in his individual and official capacity.

8. Defendant SERGEANT KEVIN DEVINE, Tax 925191, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

9. Defendant SERGEANT KEVIN DEVINE, Tax 925191, is and was at all times relevant herein, assigned to the Intel-Crime Section..

10. Defendant SERGEANT KEVIN DEVINE, Tax 925191, is being sued in his individual and official capacity.

11. Defendant SERGEANT FORREST HIRSCH, Tax # 941905, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

12. Defendant SERGEANT FORREST HIRSCH, Tax # 941905, is and was at all times relevant herein, assigned to the 81st Precinct.

13. Defendant SERGEANT FORREST HIRSCH, Tax # 941905, is being sued in his individual and official capacity.

14. Defendant POLICE OFFICER STEVE CRUZ, Tax 950252, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

15. Defendant POLICE OFFICER STEVE CRUZ, Tax 950252, is and was at all times relevant herein, assigned to the 69th Precinct.

16. Defendant POLICE OFFICER STEVE CRUZ, Tax 950252, is being sued in his individual and official capacity.

17. Defendants New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

18. Defendants New York City Police Officers John Does #1-10 are being sued in their individual and official capacities.

19. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

20. At all times relevant hereto CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

21. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

22. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

24. On or about February 18, 2017 at approximately 6:15 am plaintiff was lawfully sleeping inside of his apartment located at 482 Monroe Street, Brooklyn, New York, 2nd Floor when defendants unlawfully and forcefully entered his apartment, without a validly obtained search warrant to search plaintiff's apartment or any other legal justification.

25. Defendants woke plaintiff from his sleep by shouting obscenities, pointing their guns at plaintiff's head, and shining their flashlights in plaintiff's eyes when they entered his apartment.

26. The defendants unlawfully searched plaintiff and his apartment and did not recover any illegal drugs, weapons, or contraband from plaintiff's apartment, from plaintiff's person, or from plaintiff's possession, custody or control pursuant to defendants' unlawful search of plaintiff and his apartment.\

27. Additionally, defendants unlawfully searched each of the other 6 apartments located in the 5 level apartment where plaintiff lived, without a validly obtained search warrant or any other legal justification to search the other apartments in the building.

28. The defendants may have had probable cause to obtain a search warrant for the apartment of one of the building's who was named as the "target of the search warrant unlawfully obtained by defendants and who lived in an apartment on the fifth floor of the building. However, defendants intentionally and unlawfully obtained an overly broad search warrant to search the entire building located at 482 Monroe Street and intentionally failed to inform the judge that issued the search warrant that the building was divided into approximately 6 apartments and was not a private one family home and that it was subdivided into at least five apartments.

29. Defendants' application for a search warrant to search 482 Monroe Street, Brooklyn, New York, 2nd Floor was intentionally not narrowly tailored to only request permission to search the apartment(s) in the building for which the officers had probable cause to search at the time they obtained the search warrant.

30. Defendants also intentionally and unlawfully obtained the overly broad search warrant to search the entire building located at 482 Monroe Street, Brooklyn, New York by using an extremely unreliable "Confidential Informant" who had no prior experience or track record as a Confidential Informant or with narcotics-related law enforcement. Furthermore,

defendants did not test the reliability of the Confidential Informant or demonstrate the basis of the informant's purported knowledge when they obtained the search warrant.

31. Additionally, the "Confidential Informant" used by defendants to unlawfully obtain the overly broad search warrant was under arrest at the time he provided information to defendants about 482 Monroe Street, Brooklyn, New York. Further, the information the "Confidential Informant" provided defendants was self-serving in nature, and the informant had a motive to implicate others in illegal activity, while never admitting to participating in illegal activity himself.

32. Although the defendants were all familiar with the layout of 482 Monroe Street, knew that the building was divided into approximately 6 private apartments, and had all been inside of the building before, they intentionally failed to inform the Judge that 482 Monroe Street was not a private single family home and was divided up into approximately 6 separate apartments.

33. Prior to obtaining the search warrant, defendants did not in any way verify the information given to them by the Confidential Informant by conducting "controlled buys" at the location and/ or by conducting an independent investigation of possible drug activity at 482 Monroe Street or by the Targets of the search warrant.

34. In fact, the minimal information provided by the Confidential Informant to defendants was not corroborated before the unlawfully obtained overly broad search warrant granting permission for defendants to search the entire building located at 482 Monroe Street and making no mention of the fact that there were approximately 6 apartments located in the building where the warrant would be executed.

35. The defendants intentionally obtained an overly broad search warrant from the Court, as it improperly permitted defendants to search all six apartments in the building and to search "any other person found in the premises or seen exiting, entering or attempting to enter or exit the above premises during the Warrant execution."

36. Plaintiff was not the subject or target of the search warrant.

37. Defendants lacked a validly obtained search warrant or probable cause to obtain a search warrant to lawfully search plaintiff's apartment.

38. On or about February 18, 2017 at approximately 6:15 am when defendants unlawfully entered plaintiff's apartment, plaintiff was only wearing underwear and felt like he was standing naked in front of the officers, which caused plaintiff to become extremely embarrassed and suffer severe emotional distress.

39. Upon entering his apartment, defendants unlawfully searched plaintiff's person, unlawfully handcuffed plaintiff, and falsely arrested/ imprisoned plaintiff without probable cause or legal justification.

40. Defendants admit that they did not recover any drugs weapons or illegal contraband pursuant to the search of plaintiff and/ or his apartment.

41. At no time relevant herein did plaintiff commit a crime or violate the law in any way, nor did the officers have probable cause to believe he committed a crime or violated the law in any way.

42. Plaintiff was only wearing underwear when the officers raided the apartment, and the officer handed plaintiff clothing to put on after they thoroughly searched the clothing for drugs, weapons and contraband. In fact, according to the officers, they recovered plaintiff's NY State Identification Card from plaintiff's pants pockets which confirmed that he was a resident of 482 Monroe Street. Importantly, the officers did not recover any illegal drugs from plaintiff's clothing when they searched the clothing before handing it to plaintiff to wear.

43. Plaintiff put on the clothing that defendants handed to him and the defendants watched plaintiff get dressed.

44. Defendants transported plaintiff to the 81st Precinct against his will whereat the defendants unlawfully searched, strip-searched, fingerprinted, and photographed plaintiff.

45. Defendants did not recover any drugs, weapons or contraband from plaintiff pursuant to the strip search of plaintiff or at any other time relevant herein.

46. The defendants allege that they recovered illegal drugs from locations inside of apartments belonging to individuals other than plaintiff at 482 Monroe Street, locations that plaintiff clearly did not have possession, custody or control over.

47. Plaintiff was also unlawfully fingerprinted, photographed, and detained in a holding cell at the 81st Precinct by the officers until approximately 3:00 pm on February 18, 2017.

48. At some point in time while plaintiff was detained at the 81st Precinct, defendants realized that they did not have probable cause to arrest plaintiff because they could not credibly allege that plaintiff had actual or constructive possession of the drugs, weapons and/or contraband that the defendants allegedly recovered from other tenants' apartments in the building.

49. For the purpose of avoiding being disciplined by the NYPD if defendants could not justify to their superiors how they established probable cause to arrest plaintiff, the defendants fabricated entirely new allegations against plaintiff so that they would have a legal explanation for arresting plaintiff..

50. Specifically, the officers falsely charged plaintiff with Criminal Possession of a Controlled Substance in the Seventh Degree (PL 220.03) and completely fabricated allegations that the defendants recovered a glassine envelope containing heroin from plaintiff's pocket while he was detained at the 81st Precinct.

51. Notably, plaintiff was only wearing boxer shorts when the defendants raided his apartment and defendants handed plaintiff clothing to put on after the defendants thoroughly searched each article of clothing they handed to plaintiff for drugs, weapons or contraband. Defendants verified that there were not any drugs in the pockets of the clothing they gave to plaintiff to put on. Thereafter, the officers wholly fabricated the allegation that they recovered heroin from plaintiff's clothing pocket while he was detained at the 81st Precinct

52. Certainly, if plaintiff really possessed heroin in his pocket defendants would have recovered it during one of the earlier searches of plaintiff at his home and at the precinct and they would not have permitted plaintiff to put clothing on that had heroin in the pocket. \.

53. Plaintiff was transported to Kings County Central Booking whereat the unlawful detention and false arrest continued for many additional hours.

54. The officers initiated a criminal prosecution against plaintiff without probable cause by providing the DA's Office with false, misleading and incomplete evidence and facts that purportedly established the officers' basis for arresting and prosecuting plaintiff.

55. On February 19, 2017 at approximately 10:00 pm, 40 hours after the defendants initially seized plaintiff, Mr. Fulcher was arraigned in Kings County Criminal Court and charged with crimes he did not commit and for which the officers lacked probable cause based upon an objective factual basis to accuse him of committing, including but not limited to Criminal Possession of a Controlled Substance in the Seventh Degree (PL 220.03; Criminal Possession of a Weapon in the Fourth Degree (PL 265.01(1); Possession of Pistol Ammunition (AC 10-131(I)(3)), and Unlawful Possession of Marijuana (PL 221.05).

56. The defendants lacked probable cause to arrest plaintiff and charge him with any crimes at the time he was arrested, including the crimes they charged him with committing because the initial charges against plaintiff were based upon the police officers allegations about illegal drugs and weapons that the defendants allegedly recovered from the apartments of other tenants living at 482 Monroe Street, Brooklyn, New York.

57. Plaintiff clearly did not have constructive possession over drugs recovered from other individuals' apartments.

58. Plaintiff was released on his own recognizance at arraignment.

59. Plaintiff was required to appear in Kings County Criminal Court on approximately 7 occasions to address the false charges brought against him and to endure a criminal prosecution that lasted 9 months before the Court dismissed and sealed all charges brought against plaintiff in their entirety on November 20, 2017.

60. Defendants also unlawfully seized \$193.10 from plaintiff without any legal basis to seize the funds and did not return the seized money to plaintiff.

61. Defendants maliciously initiated a criminal prosecution against plaintiff without probable cause by providing the DA's Office with false, misleading and incomplete evidence and facts that purportedly established defendants' basis for arresting and prosecuting plaintiff.

62. Defendants maliciously prosecuted plaintiff and denied him the right to due process/ right to a fair trial.

63. Those defendants that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution, but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. .

64. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendant officers have probable cause to believe he committed a crime or violated the law.

65. The unlawful search of plaintiff's home and plaintiff's person, the false arrest/ imprisonment, denial of the right to due process./ right to a fair trial, the malicious prosecution of plaintiff, the unlawful strip search of plaintiff, and the theft of \$193.10 from plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff's home to be unlawfully entered and searched, and caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, unlawfully strip searched, denied the right to due process/ the right to a fair trial and maliciously prosecuted without probable cause and in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of plaintiff's right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

72. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

75. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. The illegal search of plaintiff and search of and entry into plaintiff's apartment employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

77. Defendants lacked probable cause to search plaintiff, or to search or enter plaintiff's apartment.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

82. Defendants commenced and continued a criminal proceeding against plaintiff.

83. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

84. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

85. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

86. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

87. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Unlawful Strip Search

88. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein.

89. Upon arriving at the 81st Precinct, defendants forced plaintiff to endure a humiliating and intrusive and unlawful strip search without an individualized reasonable suspicion that plaintiff was concealing illegal drugs, weapons or other contraband based upon the particular characteristics of the arrestee, and/or the circumstances of the arrest of plaintiff.

90. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

92. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

93. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 92 with the same force and effect as if more fully set forth at length herein

94. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

95. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

96. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

97. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

98. As a result of the foregoing, plaintiff, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

99. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

100. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

101. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 100 with the same force and effect as if more fully set forth at length herein.

102. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

103. Defendants failed to intervene to prevent the unlawful conduct described herein.

104. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and she was humiliated and subject to other physical constraints.

105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

106. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Shawn Fulcher demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable costs and attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 15, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
 June 15, 2019

_____/s/
DAVID M. HAZAN